

Bihar Right to Public Grievance Redressal Act, 2015

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State of Bihar - Act

Bihar Right to Public Grievance Redressal Act, 2015

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Bihar Right to Public Grievance Redressal Act, 2015

Act 19 of 2015

Published in Bihar Gazette on 28 August 2015

Commenced on 28 August 2015

[This is the version of this document from 28 August 2015.]

An Act to provide the right of Public Grievance Redressal to the people of the State within stipulated time limits and for matters connected therewith and incidental thereto.

Be it enacted by the Legislature of the State of Bihar in the sixty-sixth year of the Republic of India as follows:-

1.

Short title, extent and commencement. - (1) This Act may be called the Bihar Right to Public Grievance Redressal Act, 2015.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force on such date as the State Government may, by notification in Official Gazette, appoint.

2.

Definitions. - In this Act, unless the context otherwise requires,-

(a)

"complaint" means any application made by a citizen or a group of citizens to a Public Grievance Redressal Officer for seeking any benefit or relief relating to any schemes, programme or services run in the State by the State Government or in respect of failure or delay in providing such benefit or relief, or regarding any matter arising out of failure in the functioning of, or violation of any law, policy, service, programme or scheme in force in the State by a public authority but does not include grievance relating to the service matters of a public servant, whether serving or retired, or relating to any matter in which any Court or Tribunal has jurisdiction or relating to any matter under Right to Information Act, 2005(Central Act No. 22 of 2005) or services notified under the Bihar Right to Public Services Act, 2011;

[Provided the matter related with Ration Card notified under the Bihar Right to Public Services Act, 2011 shall be deemed as complaint under this Act.]

(b)

"Right to Public Grievance Redressal" means an opportunity of hearing and redressal provided to the citizens on a complaint within the stipulated time limit and right to get information about the decision made in the hearing and redressal of the complaint ;

(c)

"Public Grievance Redressal Officer" means a Public Grievance Redressal Officer notified under section 3;

(d)

"Information and Facilitation Centre" means a centre or a website established or notified under section 5 for the facilitation of submission of complaint and for dissemination of any information for the matters connected therewith and incidental thereto, including a State Portal, Help desk and Common Service Centres;

(e)

"public authority" means the State Government and its departments and includes any authority or body or institution established or constituted by or under any law made by the State Legislature ;

(f)

"first appellate authority" means an officer or authority notified as such under section 3;

(g)

"second appellate authority" means an officer or authority notified as such under section 3;

(h)

"revision authority" means an officer or authority notified as such under section 3;

(i)

"stipulated time limit" means the maximum time limit permitted to Public Grievance Redressal Officer for providing an opportunity of hearing and redressal of a complaint, or to the first appellate authority or the second appellate authority for deciding an appeal, or to the aforesaid authorities for informing the complainant or appellant, as the case may be, of the decision on such complaint or appeal, as the case may be.

(j)

"days" means the working days, referred to as time limit;

(k)

"decision" means a decision taken on a complaint or appeal or revision by the Public Grievance Redressal Officer or appellate authority or revision authority notified under this Act and includes the information sent to the complainant or the appellant, as the case may be;

(l)

"prescribed" means prescribed by the rules made under this Act; and

(m)

"State Government" means the Government of Bihar.

3.

Notification of Public Grievance Redressal Officers, first appellate authority, second appellate authority and revision authority and stipulated time limit. - The State Government may notify from time to time, the Public Grievance Redressal Officer, first appellate authority, second appellate authority and revision authority and stipulated time limits.

4.

Notification of Department wise Schemes, Programmes and Services on which complaint may be filed. - The State Government may notify from time to time, Department wise schemes, programmes and services on which complaint can

be filed and also the public authority and department on which level the complaint will be redressed.

5.

Right to get opportunity of hearing and redressal on complaint within the stipulated time limit. - (1) The Public Grievance Redressal Officer shall give an opportunity of hearing of a complaint filed under this Act within the stipulated time limit.

(2)

The Public Grievance Redressal Officer may seek the assistance of such any other officer, public authority or employee as he considers it necessary for the appropriate discharge of his duties for hearing and redressal of a complaint under sub-section (1).

(3)

Any officer, public authority or employee, whose assistance has been sought under sub-section (2), shall render all assistance to the Public Grievance Redressal Officer seeking his assistance and for the purposes of any contravention of the provisions of this Act, such other officer or employee, as the case may be, shall be treated a Public Grievance Redressal Officer.

(4)

The stipulated time limit shall start from the date on which date a complaint/appeal is filed to the Public Grievance Redressal Officer or to a person authorized by him to receive the complaints or to the first appellate authority or the second appellate authority. Receipt of a complaint shall be duly acknowledged.

(5)

The Public Grievance Redressal Officer on receipt of a complaint under subsection (1) shall give an opportunity of hearing to the complainant, within the stipulated time limit, and after hearing the complainant, decide the complaint either by accepting it or by suggesting an alternative benefit or relief available under any other law, policy, service, programme or scheme or by rejecting it for the reasons to be recorded in writing and shall communicate his decision on the complaint to the complainant within the stipulated time limit.

6.

Establishment of Information and Facilitation Centre. - (1) For the purposes of the efficient and effective redressal of grievance of the people and to receive complaints under this Act, the State Government shall establish Information and Facilitation Centers.

(2)

The State Government may, by notification, make rules in relation to Information and Facilitation Centers.

7.

Appeal. - (1) Any person, who has not been given an opportunity of hearing and redressal of the complaint within the stipulated time limit or who is aggrieved by the decision of the Public Grievance Redressal Officer, may file an appeal to the first appellate authority within thirty days from the expiry of the stipulated time limit or from the date of the decision of the Public Grievance Redressal Officer:

Provided that the first appellate authority may admit the appeal after the expiry of the period of thirty days but not exceeding forty five days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2)

If the Public Grievance Redressal Officer does not comply with the provision of section 5, any person aggrieved by such non-compliance, may submit complaint directly to the first appellate authority which shall be disposed of, in the manner of a first appeal.

(3)

The first appellate authority may order the Public Grievance Redressal Officer to given an opportunity of hearing and redressal to the complainant within the period specified by it or may reject the appeal.

(4)

A second appeal against the decision of the first appellate authority may be filed before the second appellate authority within thirty days from the date of the decision of the first appellate authority:

Provided that the second appellate authority may admit the appeal after the expiry of the period of thirty days but not exceeding forty five days, if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(5)

An aggrieved person may file an appeal directly to the second appellate authority, if the Public Grievance Redressal Officer does not comply with the order of first appellate authority passed under sub-section (3) or the first appellate authority does not dispose of the appeal within the stipulated time limits and it shall be disposed of in the manner of a second appeal.

(6)

The second appellate authority may order the Public Grievance Redressal Officer or the first appellate authority to give an opportunity of hearing and redressal to the complainant or dispose of the appeal, as the case may be, within the period specified by it, which in any case will not exceed thirty days or may reject the appeal.

(7)

Along with the order to give an opportunity of hearing and redressal to the complainant, the second appellate authority may impose a penalty on Public Grievance Redressal Officer or any other public authority or the first appellate authority in accordance with the provisions of section 8.

(8)

The Public Grievance Redressal Officer, first appellate authority and second appellate authority shall, while deciding a complaint or an appeal under this section, have the same powers as are vested in a civil court while trying a suit under the Code of Civil Procedure, 1908 (Central Act No. 5 of 1908) in respect of the following matters, namely:-

(a)

summoning and enforcing the attendance of any person and examining him on oath;

(b)

discovery and production of any document or other material object producible as evidence;

(c)

receiving evidence on affidavits;

(d)

requisitioning of any public record;

(e)

issuing commission for the examination of witnesses;

(f)

reviewing its decisions, directions and orders; and/or

(g)

any other matter which may be prescribed.

8.

Penalty. - (1) Where the second appellate authority is of the opinion that the Public Grievance Redressal Officer or any other public authority or the first appellate authority has failed to give an opportunity of hearing and redressal within the stipulated time limit without any sufficient and reasonable cause, it may impose on him a penalty which shall not be less than five hundred rupees but not more than five thousand rupees:

Provided that before imposing any penalty under this sub section, the person on whom penalty is proposed to be imposed shall be given a reasonable opportunity of being heard.

(2)

The penalty imposed by the second appellate authority under sub-section (1) shall be recoverable from the salary of the Public Grievance Redressal Officer or any other public authority or the first appellate authority.

(3)

The second appellate authority, if it is satisfied that the Public Grievance Redressal Officer or any other public authority or the first appellate authority has failed to discharge the duties assigned to him under this Act, without assigning sufficient and reasonable cause, may recommend action against him under the service rules applicable to him.

9.

Revision. - The Public Grievance Redressal Officer or any other public authority or first appellate authority aggrieved by an order of the second appellate authority in respect of imposing of penalty under this Act, may make an application for revision of the order to the officer or authority nominated by the State Government within a period of sixty days from the date of that order. The nominated officer or authority shall dispose of the application in accordance with the prescribed procedure:

Provided that the officer or authority nominated by the State Government may entertain an application after the expiry of

the period of sixty days but not exceeding seventy five days, if he is satisfied that the applicant was prevented by sufficient cause from filing the appeal in time.

10.

Protection of action taken in good faith. - No suit, prosecution or other legal proceedings shall lie against any person for anything which is done or intended to be done in good faith under this Act or any rules made there under.

11.

Bar of jurisdiction of courts. - No civil court shall have jurisdiction to hear, decide or deal with any question or to determine any matter which is by or under this Act required to be heard, decided or dealt with or to be determined by the Public Grievance Redressal Officer, first appellate authority, second appellate authority or the officer nominated by the State Government.

12.

Provisions to be in addition to existing laws. - The provisions of this Act shall be in addition to, and not in derogation of, any other law for the time being in force.

13.

Power to make rules. - (i) The State Government may, by notification in the Official Gazette, make rules to carry out the purposes of this Act.

(ii)

All rules made under this section shall be laid, as soon as may be, after they are so made, before the House of the State Legislature, while it is in session, for a period of not less than fourteen days, which may be comprised in one session or in two successive sessions, and if, before the expiry of the session in which they are so laid or of the session immediately following, the House of the State Legislature makes any modification in any such rules or resolves that any such rule should not be made, such rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done there under.

14.

Removal of difficulties. - (1) If any difficulty arises in giving effect to the provisions of this Act, the State Government may, by an order published in the Official Gazette, take any action, not inconsistent with the provisions of this Act, which appears to it to be necessary or expedient for removal of such difficulty:

Provided that no order under this section shall be made after the expiry of two years from the commencement of this Act.

(2)

Every order made under this section shall be laid, as soon as may be, after it is so made, before the House of the State Legislature.

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